Data Processing Agreement

This Data Processing Agreement (this "**DPA**") is entered into as of May 23, 2026 (the "**Effective Date**") by and between **Seabright Hotels & Resorts Inc**, a hotel group that owns and operates six hotels (the "**Customer**"), and **PayGuard Payments Inc** (the "**Supplier**"). The Customer and the Supplier are each a "**Party**" and together the "**Parties**".

WHEREAS, the Customer and the Supplier are parties to a Software-as-a-Service Agreement dated May 18, 2026 (the "**Parent Agreement**"), under which the Supplier provides payment services and related software to the Customer for use at the Customer's hotels;

WHEREAS, in providing those services the Supplier will process personal data of the Customer's customers and employees; and

WHEREAS, the Parties wish to set out their respective obligations regarding the protection of that personal data;

NOW, THEREFORE, in consideration of the mutual covenants herein and other good and valuable consideration, the Parties agree as follows:

Section 1. Definitions

1.1 "**Applicable Data Protection Law**" means all laws and regulations relating to the privacy, security or processing of Personal Data that apply to a Party in connection with this DPA, including the laws of the State of California.

1.2 "**Personal Data**" means any information relating to an identified or identifiable individual that the Supplier processes on behalf of the Customer in connection with the Services, including data of the Customer's customers and employees.

1.3 "**Properties**" means the six hotels owned and operated by the Customer at which the Services are delivered.

1.4 "**Services**" means the services provided by the Supplier under the Parent Agreement.

1.5 "**Security Incident**" means any breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to, Personal Data.

1.6 "**Subprocessor**" means any third party engaged by the Supplier that processes Personal Data.

1.7 Terms such as "process", "processing" and "data subject" have the meanings given in Applicable Data Protection Law.

Section 2. Term and Relationship to Parent Agreement

2.1 This DPA takes effect on the Effective Date and, unless terminated earlier in accordance with its terms, continues for an initial term of thirty-six (36) months, expiring on May 23, 2029.

2.2 This DPA is issued under, and forms part of, the Parent Agreement. In the event of conflict between this DPA and the Parent Agreement concerning the processing of Personal Data, this DPA prevails.

2.3 Obligations in respect of Personal Data that remains in the Supplier's possession after expiry or termination survive until that data is returned or deleted in accordance with Section 10.

Section 3. Scope and Roles

3.1 The Customer is the party that determines the purposes and means of processing, and the Supplier processes Personal Data solely on behalf of the Customer.

3.2 The subject matter, nature and purpose of processing, the types of Personal Data and the categories of data subjects are described in Schedule 1 and are limited to what is necessary to deliver the Services at the Properties.

3.3 The Customer warrants that it has a lawful basis to disclose Personal Data to the Supplier and has given all notices and obtained all consents required by Applicable Data Protection Law.

Section 4. Supplier Obligations

4.1 The Supplier shall process Personal Data only on the Customer's documented instructions, including those in the Parent Agreement and this DPA, unless otherwise required by law, in which case the Supplier shall inform the Customer before processing unless prohibited from doing so.

4.2 The Supplier shall ensure that personnel authorized to process Personal Data are bound by appropriate duties of confidentiality and receive suitable training.

4.3 The Supplier shall not sell Personal Data or use it for its own purposes, including marketing or profiling, and shall promptly notify the Customer if it believes an instruction infringes Applicable Data Protection Law.

Section 5. Security

5.1 The Supplier shall implement and maintain appropriate technical and organizational measures to protect Personal Data against Security Incidents, having regard to the state of the art, the cost of implementation and the nature of the data, including the measures described in Schedule 2.

5.2 Such measures shall include, as appropriate, encryption of Personal Data in transit and at rest, access controls based on least privilege, logging and monitoring, regular testing of security controls, and compliance with applicable payment card industry standards.

Section 6. Subprocessors

6.1 The Customer grants general authorization for the Supplier to engage Subprocessors, subject to this Section.

6.2 The Supplier shall maintain a current list of Subprocessors, give the Customer reasonable prior written notice of any intended addition or replacement, and allow the Customer a reasonable opportunity to object on reasonable data protection grounds. If the Parties cannot resolve an objection in good faith, the Customer may terminate the affected Services without penalty.

6.3 The Supplier shall impose on each Subprocessor written obligations no less protective than those in this DPA and remains liable for the acts and omissions of its Subprocessors.

Section 7. Security Incidents and Assistance

7.1 The Supplier shall notify the Customer without undue delay after becoming aware of a Security Incident, and shall provide information reasonably available to it regarding the nature of the incident, the data affected, likely consequences and measures taken or proposed.

7.2 The Supplier shall take reasonable steps to contain and remediate each Security Incident and shall cooperate with the Customer in any notification to regulators or data subjects. Unless required by law, the Supplier shall not make public statements identifying the Customer without its prior written approval.

7.3 The Supplier shall provide reasonable assistance to the Customer in responding to data subject requests, conducting data protection impact assessments and consulting with regulators, in each case taking into account the nature of the processing.

Section 8. International Transfers

8.1 The Supplier shall not transfer Personal Data outside the jurisdiction in which it is received for the Services except as permitted by Applicable Data Protection Law and with appropriate safeguards in place, and shall provide the Customer with the locations of processing on request.

Section 9. Audit

9.1 The Supplier shall make available to the Customer, on reasonable request, information necessary to demonstrate compliance with this DPA, and shall allow for and contribute to audits, including inspections, conducted by the Customer or an independent auditor bound by confidentiality.

9.2 Audits shall be conducted on reasonable notice, during normal business hours and in a manner that minimises disruption to the Supplier's operations and does not compromise the confidentiality of other customers' data.

Section 10. Return and Deletion

10.1 Upon expiry or termination of this DPA or at the Customer's written request, the Supplier shall, at the Customer's election, return or securely delete all Personal Data and delete existing copies, unless retention is required by applicable law.

10.2 On request, the Supplier shall certify in writing that return or deletion has been completed. Any Personal Data retained as required by law shall remain subject to this DPA and be used solely for the legally required purpose.

Section 11. Fees, Confidentiality and Intellectual Property

11.1 No separate fees are payable for the Supplier's performance of this DPA, which is included in the fees under the Parent Agreement, and invoicing and payment shall follow the Parent Agreement. Reasonable costs of any audit shall be borne by the Customer, unless the audit reveals a material breach by the Supplier.

11.2 Personal Data is the Confidential Information of the Customer. The Supplier shall hold it in strict confidence and shall not disclose it except as permitted by this DPA.

11.3 As between the Parties, the Customer retains all right, title and interest in Personal Data. Nothing in this DPA transfers any intellectual property rights of either Party to the other.

Section 12. Warranties, Liability and Indemnity

12.1 Each Party warrants that it has full authority to enter into this DPA and will comply with Applicable Data Protection Law in performing it.

12.2 The Supplier shall indemnify the Customer against third-party claims, regulatory penalties to the extent permitted by law, and reasonable related costs arising from the Supplier's breach of this DPA or its processing of Personal Data in violation of the Customer's instructions or Applicable Data Protection Law.

12.3 The Customer shall indemnify the Supplier against third-party claims arising from the Customer's breach of Section 3.3.

12.4 The limitations and exclusions of liability in the Parent Agreement apply to this DPA, except to the extent that applicable law does not permit liability to be limited.

Section 13. Termination

13.1 The Customer may terminate this DPA on written notice if the Supplier materially breaches it and, where the breach is capable of remedy, fails to remedy it within a reasonable period after written notice. Either Party may terminate this DPA if the Parent Agreement expires or is terminated.

13.2 This DPA terminates automatically when the Supplier ceases to process Personal Data under the Parent Agreement, subject to Section 10 and the surviving provisions.

Section 14. Miscellaneous

14.1 **Governing Law and Jurisdiction.** This DPA is governed by the laws of the State of California, and the state and federal courts located in San Francisco County, California have exclusive jurisdiction over any dispute arising out of or in connection with it.

14.2 **Assignment.** Neither Party may assign or transfer this DPA without the prior written consent of the other Party, not to be unreasonably withheld, except that the Customer may assign it to an affiliate or a successor to its hotel business on written notice.

14.3 **Notices.** Notices under this DPA must be in writing and delivered by hand, by recognized courier or by email to the address most recently notified by the receiving Party, and are deemed

received on delivery or, for email, on the next business day after transmission without error notice.

14.4 **Entire Agreement.** This DPA, together with the Parent Agreement and its Schedules, is the entire agreement of the Parties concerning its subject matter and supersedes all prior understandings on that subject. Amendments must be in writing and signed by both Parties.

14.5 **Severability and Waiver.** If any provision is held unenforceable, the remainder continues in effect. A failure to exercise a right is not a waiver of it.

14.6 **Counterparts.** This DPA may be executed in counterparts, including by electronic signature, each of which is an original and all of which together constitute one instrument.

IN WITNESS WHEREOF, the Parties have caused this DPA to be executed by their duly authorized representatives.

Seabright Hotels & Resorts Inc	**PayGuard Payments Inc**
By: _____	By: _____
Name: Helena Cruz	Name: Grace Mbeki
Title: VP Technology Sourcing	Title: Authorized Signatory
Date: May 13, 2026	Date: May 16, 2026

Schedule 1. Description of Processing

Item	Description
Subject matter	Provision of the Services under the Parent Agreement at the Properties
Duration	The term of this DPA and any period of retention under Section 10
Nature and purpose	Hosting, storage, transmission and processing of payment and related transactions, and support of the Services
Categories of data subjects	The Customer's customers (guests) and employees
Types of Personal Data	Names, contact details, booking and transaction references, payment-related data, and employee identification and access data

Schedule 2. Security Measures

Area	Measure
Access control	Role-based, least-privilege access with authentication controls
Encryption	Encryption of Personal Data in transit and at rest
Monitoring	Logging and monitoring of access to systems

Area	Measure
	holding Personal Data
Resilience	Backup and recovery arrangements and business continuity planning
Testing	Periodic vulnerability assessment and security testing
Personnel	Confidentiality undertakings and security awareness training